

		lack of power and knowledge,” and that an automatic stay allows “powerful corporations [to] delay cases filed against them for typically one to three years.” (California Bill Analysis, S.B. 365 Sen., 7/12/23.) The Legislature further explained the purpose of Senate Bill 365 was to give “courts discretion to allow . . . workers to move their case forward if a company files an appeal, rather than waiting for years while the appeal is heard. SB 365 will level the playing field for . . . workers who deserve to move their case forward when a company or employer violates their rights.” (California Bill Analysis, S.B. 365 Sen., 7/12/23.) The balance of hardships does not favor a stay, particularly as this matter has been pending for over a year and further delay may prejudice Plaintiff’s right to promptly litigate her claims. Defendant contends generally that proceeding with the action would result in high litigation costs and further contends it would be prejudiced as proceeding with the litigation may be construed as Defendant’s waiver of his right to compel arbitration. This argument is without merit as Defendant has already moved to compel arbitration and has appealed the Court’s denial of that motion.
9	Morris Cerullo World Evangelism v. G10 Law 2026-01543337 Motion for Change of Venue	The Motion to Transfer Venue by Defendants G10 Law, Louis A. Galuppo, and Georgia Z. Schneider is GRANTED. This legal malpractice case arises from the attorney Defendants’ handling of an underlying real property lawsuit, Orange County Case No. 21-01227550. Defendants assert that venue in San Diego County is proper because all parties reside in San Diego County and the attorney-client relationship was formed and carried out in that County. Plaintiffs oppose the motion on the grounds that venue is proper in Orange County because the lawsuit is premised on Defendants’ breach of duties related to their contract to perform legal services in the underlying Orange County Superior Court lawsuit related to real property located in Santa Ana. <u>Legal Standard:</u> Code of Civil Procedure § 395(a) states in part, “Except as otherwise provided by law and subject to the power of the court to transfer actions or proceedings as provided in this title, the superior court in the county where the defendants or some of them reside at the commencement of the action is the proper court for the trial of the action. If the action is

	for injury to person or personal property or for death from wrongful act or negligence, the superior court in either the county where the injury occurs or the injury causing death occurs or the county where the defendants, or some of them reside at the commencement of the action, is a proper court for the trial of the action. [...] Subject to subdivision (b), if a defendant has contracted to perform an obligation in a particular county, the superior court in the county where the obligation is to be performed, where the contract in fact was entered into, or where the defendant or any defendant resides at the commencement of the action is a proper court for the trial of an action founded on that obligation, and the county where the obligation is incurred is the county where it is to be performed, unless there is a special contract in writing to the contrary." "The plaintiff's theory of the action as set forth in the complaint determines the venue. Because the law favors the right of trial at the defendant's residence, the complaint will be strictly construed against a plaintiff seeking to lay the venue elsewhere." (<i>Gallin v. Superior Court</i> (1991) 230 Cal.App.3d 541, 544, citations omitted.) However, "the county of a defendant's residence is not a preferred place of trial over the county where the contract is entered into or is to be performed." (<i>Gilman v. Nordin</i> (1952) 112 Cal.App.2d 788, 793.) "Section 395 of the Code of Civil Procedure provides that the county in which the contract sued on is made and is to be performed is a proper county for trial of the action. Further, it will be noted that the county where the contract is made is deemed to be the county where it is to be performed, unless there is a special contract in writing to the contrary. No distinction is drawn between an action at law or in equity. Further, where the main relief sought is grounded upon a cause of action based on a contract obligation, the contract or nature of the case controls under the 'main relief' rule." (<i>Diepenbrock v. Auslen</i> (1960) 185 Cal.App.2d 747, 751.) Section 397 states in part, "The court may, on motion, change the place of trial in the following cases: (a) When the court designated in the complaint is not the proper court. (b) When there is reason to believe that an impartial trial cannot be had therein.
--	--

		(c) When the convenience of witnesses and the ends of justice would be promoted by the change.” <u>Application:</u> Although Defendants have performed legal services related to Orange County litigation, Plaintiffs have not shown Defendants “contracted to perform an obligation in a particular county...” Based on the language of the statute, this is a precondition for any of the contract-based venue provisions of section 395. While Defendants generally agreed to represent Plaintiffs, Plaintiffs have not shown the contract specified that work was to be performed in “a particular county,” i.e. Orange County. Moreover, the statute states that generally, the county “where the obligation is incurred is the county where it is to be performed,” and here the parties’ contract was entered or “incurred” in San Diego. Therefore, Plaintiffs have not shown there is a contractual basis for venue in Orange County.
10	State Farm General Insurance Co., v. LG Electronics U.S.A., Inc. 2025-01464236 Motion for Summary Judgment/Adjudication	Defendant LG Electronics U.S.A., Inc.’s motion for Summary Judgment or, in the alternative, Summary Adjudication as to the claims alleged in State Farm General Insurance Company’s Complaint is DENIED without prejudice. The proof of service fails to show the moving papers were served on Plaintiff. (ROA 22.) According to the proof of service, Defendant used a messenger service to serve the moving papers on the Plaintiff. However, the proof of service only shows that the moving papers were provided to a messenger service for service on April 23, 2026. Although a Declaration of Messenger is attached to the proof of service, it is blank and neither dated nor signed by any messenger. Therefore, Defendant has failed to show the moving papers were served on Plaintiff by the messenger service. Moving Defendant to give notice.